



Labour Code

Governed and upheld by the Department of Justice
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Article 1. General Provisions

1.1 The Labour Code legislates the relationship between employee and employer within the state of San Andreas.

1.2 In the code, unless otherwise stated:

- **“Employer”** means a person, body Corporate, undertaking, association, public authority or body of persons who or which employed or employs a person under an employment contract.
- **“Employee”** means a person who enters into or who works under a contract of employment. **“Employment Contract”** means any contract, under which it is agreed that one person (the employee) will perform certain services for another (the employer).
- **“State Organization”** means any body which employs on behalf of the state. This includes the Government, Los Santos Police Department, Federal Investigation Bureau, San Andreas Highway Patrol, National Guard and Emergency Medical Services.
- **“Gross Misconduct”** means a serious offense which includes but is not limited to theft, dishonesty, wilful damage to property, violent behavior, possession or use of illicit drugs at the workplace, and a serious breach of confidentiality or company policy;
- **“Private Company”** means any form of entrepreneurship as described in Tax Law Article 1.
- **“Gig Work Employee/Employer”** means any employee/employer who is hired or hires others for a one-off purpose.
- **“Private Organization”** means any body which employs citizens into a permanent place of work. This includes only LifeInvader.



Article 2. Hiring Process.

- 2.1** It is the responsibility of all State Organisations to ensure all employees are employed only if he/she has no criminal record, is not seen in criminal structures, is not on the blacklist of the organization in which he wants to get a job, or in the general blacklist of all government organizations published on the official government email server.
Exemption: Private Organizations, Private Companies and Gig Work.
- 2.2** Employers may conduct an interview to determine the suitability of any prospective employee.
- 2.3** It is the responsibility of the Employer to ensure any prospective employee does not have any tattoos on their face or hands as well as any face paint.
- 2.4** It is entirely at the discretion of the Employer what the requirements are for prospective Employees to be hired.
- 2.5** The Employer must ensure that the Employment Contract is signed by the Employee in line with Article 3. Employment Contract.
- 2.6** The employer is responsible for hiring people into roles suitable for their knowledge, background and experience. Please see Code of Procedures Article 13.13.



Article 3. Employment Contract

- 3.1 An Employment Contract is a contract drafted by an Employer which outlines the rights, responsibilities, rules and penalties that are specific to that Employer.
- 3.2 All employees must sign an Employment Contract upon the commencement of their employment.
Exception in line with Article 3.5
- 3.3 A readable version of the Employment Contract must be made available prior to any request to sign the contract.
- 3.4 The employment contract must comply with Contract Law.
- 3.5 Gig Work Employers are not required to have an Employment Contract.
- 3.6 Termination of Employment signifies the end of any Employment Contract.
- 3.7 Employment contracts must be approved by the Attorney General of San Andreas.
- 3.8 If an Employer does not have a contract approved by the Attorney General of San Andreas then the “Standard Employment Contract” applies which can be found in article 3.9.
Note: Private Organizations are required to have their own contract and not use the Standard Contract.
- 3.9 [Standard Employment Contract for State Organizations.](#)
- 3.10 All Organizations, in the absence of their own authorized Employment Contract by default, will utilize the Standard Employment Contract as found above in article 3.9.



Article 4. Employees obligations

- 4.1 All Employees must comply with all state legislation, internal regulations and their Employment Contract.
- 4.2 All Employees must complete their work to the best of their abilities at all times.
- 4.3 All Employees must have valid health insurance at all times.
Exception: Private Organizations, Private Businesses and Gig Work.
- 4.4 All Employees must hold a valid gun license if their work requires the use of firearms.
- 4.5 All Employees have the right to receive professional training, retraining or advanced training in accordance with their role.
- 4.6 No Employee may be drunk or otherwise intoxicated at their place of work.
Exception: Workplace gatherings or parties whereby the leader has approved.
- 4.7 No Employee shall wilfully and without reasonable cause do anything likely to endanger himself or herself or others;
- 4.8 All Employees must wear the uniform and protective equipment provided by their Employer if applicable
- 4.9 The Employee is required to report any absence from work that will last longer than three (3) days and request the relevant “Leave of Absence”.
Note: Flying into the state while on LOA will result in its immediate revocation.
- 4.10 The Employee is obligated to report any breach of the Labour Code of their Employer to the Attorney General of San Andreas.



Article 5. Employer Obligations

- 5.1 The Employer must follow all state legislation in the creation and handling of all internal policies and Employment Contract.
- 5.2 The Employer must provide a working environment which allows employees the opportunity to progress within the organization.
- 5.3 The Employer must take all possible actions to ensure their Employees rights are met and that they are treated with dignity and respect.
- 5.4 The Employer must maintain a roster of all employees, which tracks all Passport numbers and any changes to the employee's name.
- 5.5 The Employer must treat all Employees equally without unfair bias.
- 5.6 All Employers are required to cooperate with any investigation or inspection led by the Government of San Andreas, the Attorney General of San Andreas or the Court.
- 5.7 The Employer is obligated to pay any and all agreed upon salary or bonus in a timely manner in accordance with Article 6.
Exceptions: Employees may be denied their salary if they are asleep during the pay time period.
- 5.8 The Employer is obligated to consider complaints from employees regarding the work process
- 5.9 The employer is required to keep a record of all investigations into misconduct of any employees in the form of case files via an Internal Affairs division.



Article 6. Working Hours.

- 6.1 The employee is obliged to be at the workplace or perform work duties in accordance with the internal labor regulations of the organization.
- 6.2 The Employer must include any minimum hourly work requirements within their internal regulations and employment contract.
- 6.3 No employee can be mandated to work more than 12 hours within a single 24 hour time period.
- 6.4 An employee may choose to work more than 12 hours within a single 24 hour time period on a voluntary basis
- 6.5 Employee breaks throughout the day may not exceed 2 hours, while remaining on duty.
- 6.6 The Employer is obligated to grant a break or vacation to any Employee that has a valid reason and requests this through official channels. This vacation may be up to 7 days.
Note: Flying into the state will result in the LOA being immediately revoked. Any person wishing to take a leave of absence longer than 7 days must instead resign from their post.
- 6.7 A Leave of Absence may only be taken if the last Leave of Absence was over 5 days ago.



Article 7. Financial Remuneration

- 7.1** All employers may implement and manage bonus schemes within their Business at their own discretion.
- 7.2** Employers may implement competitions and issue rewards.
- 7.3** Any bonus or reward due to an employee must be paid at either the designated date or the earliest possibility thereafter.
- 7.4** Any compensation required for expenses an Employee has paid in accordance to work completed as per their Employment must be repaid by the Employer.
- 7.5** Should problems arise with the treasury, then the bonus or compensation may be delayed until the problem is resolved. The employer is required to take all steps at their disposal to resolve this issue as quickly as possible.
- 7.6** Bonuses and compensation are paid exclusively in the currency of the state of San Andreas.
- 7.7** The Employer holds the right to issue bonuses or pay compensation from their personal funds.
- 7.8** If an employee leaves the organization before their bonus has been paid, they forfeit their bonus payment. It is the choice of the employer if they wish to still issue this bonus.



Article 8. Internal Regulations

- 8.1 The Employer holds the exclusive right to create and manage their own Internal Regulations.
- 8.2 All Internal Regulations must comply with state legislation.
- 8.3 All Internal Regulations must be made available to all employees and must be trained during the induction training of all new Employees.
- 8.4 For violation of the internal labor regulations and/or the Labor code of the State of San Andreas by an employee, an Employer has the right to apply the following disciplinary sanctions:
- a) Reprimand;
 - b) Demotion;
 - c) Suspension (demotion to rank 1);
 - d) Re-training
 - e) Termination of employment. (Following Article 10 of this code.)
- 8.5 The Employer has the right to remove the disciplinary sanction from the employee, if during the following seven days from the sanction, the employee showed up to work, accomplished his tasks accordingly, displayed good behavior and did not receive any new disciplinary sanction.
- 8.6 The Internal Affairs shall run independently inside the Organization. The Leader or Deputy Leaders shall not have influence on case files concerning employees.
- Note: All concerns and complaints regarding the conduct of Internal Affairs shall be brought to the Attorney General for review.***
- 8.7 The Internal Affairs division is responsible for investigating all reports they receive regarding complaints and/or potential misconduct and/or violations of internal rules or state legislation by employees and keep a record of the investigation and its outcome in the form of a case file.
- 8.8 The Internal Affairs division is responsible for gathering all the facts, point of view and where required, each side of the story before issuing punishments and documenting it all in case files whether punishments are issued or not, all complaints must have a case file opened and must be taken seriously by Internal Affairs.



Article 9. Suspension

- 9.1** Suspension from work is a temporary preventive measure in the form of a ban on exercising one's official powers, with or without the preservation of wages and positions (at the discretion of the head of the organization), until a final decision is made.
- 9.2** Suspension from one's duties may be enacted by the following designated individuals:
- a) The Employer
 - b) The Governor
 - c) The Deputy Governor
 - d) District Court Judge
 - e) Supreme Court Justice
 - f) Attorney General
- 9.3** The grounds for suspending an Employee are as follows:
- a) Pre-Trial proceeding
 - b) During an investigation
 - c) During recertification or retraining of an Employee
 - d) Gross Misconduct



Article 10. Termination of Employment

10.1 With the exception of the National Guard, an employee retains the right to terminate their own employment at any time.

Note: Any penalties applicable in the employment contract may apply and termination may be withheld pending the payment of these penalties.

10.2 The employment relationship may be terminated by the employer in the following cases:

- a) Repeated violation of the internal labor regulations of the organization;
- b) In case of identification in the employee's personal file of outstanding violations of the Penal Code;
- c) Repeated failure of the employee to fulfill his duties;
- d) Failure to meet minimum working hours as per their Employment Contract.
- e) The appearance of an employee at work in a state of alcoholic or drug intoxication;
- f) Incitement to conflicts within the organization;
- g) Unsuitability (incompetence);
- h) In case of identification of an actual record addressed to the employee in the emergency situations of organizations.
- i) Gross Misconduct

10.3 The Employer may choose to “blacklist” the Employee from the organization while terminating an employment. This shall result in a Global Blacklist from all state funded organizations. All evidence for the blacklist shall be recorded into casefiles in accordance to Article 8.7 of this document for audits or documentation purposes.

10.3.1 Where the employment has been terminated without an official blacklist from the organization, they shall submit evidence to the Supreme Court to request a Global Blacklist for the individual.

10.4 The Employer must provide the reason for termination to the Employee, if requested within 48 hours of termination.

10.5 It is forbidden to terminate the employment of a whistleblower who alerts the Government or an Employer of issues within an organization in relation to the incident.



Article 11. Oversight

- 11.1** The oversight of all Employees is conducted by the Government. The Governor and Attorney General share this responsibility.
- 11.2** Everyone has the right to defend their labour rights and freedoms in all ways that are not prohibited by law. The main methods of protection are:
- a) Self-defense by workers of their labor rights (peaceful settlement/protest);
 - b) Contacting the San Andreas Attorney General's Office.
- 11.3** The Attorney General and Governor must conduct investigations into any breach of the Labour Code.
- 11.4** If, during the course of a pre-trial proceedings, the Governor or Attorney General reveals violations in the employer's actions in relation to the employee, the case will be brought to court.
- 11.5** The Government has the authority to:
- a) Initiate criminal and administrative cases;
 - b) Analyze the circumstances and causes of the violations identified, as well as to take measures to eliminate and restore the violated labor rights of citizens; c) Conduct investigations into complaints received from citizens about the violation of their labor rights.
 - d) Conduct scheduled and unscheduled inspections for the knowledge of legislation;
 - e) Conduct scheduled and unscheduled inspections to identify violations in the field of labor;
 - f) Conduct scheduled and unscheduled inspections of Employers email servers
 - g) Implement legal advice in the field of labor
 - h) Mandate the alteration of Internal Policy or procedure within an organisation.
 - i) Take action through the Department of Justice where any breach of legislation is found, including but not limited to prosecution of Employees or Employers.



- 11.6** The Government may take action through the Department of Justice in any case where discrimination is found within an organisation. This includes, but is not limited to discrimination in employment, discrimination in recruitment, promotion, determination of wages, distribution of duties, discrimination based upon protected characteristics etc.



Signed into law by the following state leaders:

Governor of San Andreas

Matthew Blackheart



General of the National Guard

Bob Captain



Chief of Police

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